

9:00 AM

Line 6

25-CIV-02273 MIRAY YARASIR VS. DOUBLE AA CORPORATION, ET AL

MIRAY YARASIR
DOUBLE AA CORPORATION

ROBERT F BUZZARD
VASTI MONTIEL

Plaintiff's Motion for Protective Order

TENTATIVE RULING:

Plaintiff Miray Yarasir's motion for a protective order is DENIED. Defendant Double AA Corporation's and Hyiat Aish's request for sanctions is GRANTED, in part, and DENIED, in part.

FACTUAL BACKGROUND

On December 18, 2025, Defendants served Plaintiff with a notice of deposition, to be held on March 2, 2026. (Montiel Decl. at ¶7). Two months later, on February 18, 2026, Plaintiff informed Defendants that a Turkish interpreter was needed for the deposition. (Montiel Decl. at ¶8.) Defense counsel was surprised by this request, given Plaintiff's facility with the English language during her employment for Defendant Double AA, and because her written discovery responses attested that, while she "prefers Turkish," she writes and speaks English "with ease." (*Id.*, ¶ 8, Ex. C, Plaintiff's Responses to Interrogatories, Set One, Nos. 2.9, 2.10.) Plaintiff's discovery responses had not been prepared with the assistance of an interpreter. (*Id.*) Defense counsel proposed to accommodate an interpreter in exchange for Plaintiff stipulating that the deposition may exceed the standard seven hours (*Id.* at ¶9; Buzzard Decl., Ex. A, Email Exchange re: Interpreter.) Defense counsel also stated an expectation that Plaintiff cover payment and logistics for the interpreter, given her discovery responses stating that she can read, write, and speak English "with ease.") (*Ibid.*) Plaintiff's counsel refused to extend the time for the deposition, and the parties proceeded to the deposition with an interpreter. (Montiel Decl., ¶10.)

At the deposition, Defense counsel did not object to Plaintiff's use of an interpreter. (See Montiel Decl., Ex. A, Deposition Transcript.) After giving admonitions, Defense Counsel asked a series of questions related to a pre litigation demand letter. (Montiel Decl. at ¶11, Ex. A pp. 7-17.) Then, Defense Counsel asked: "*Do you believe that you are incapable of expressing yourself in the English language?*" (*Id.* at 18:8-9.) Plaintiff's counsel objected on the basis that Plaintiff's right to testify through an interpreter is not a proper subject for examination and stated "*I instruct my client not to answer any further questions on this topic as they're harassing.*" (*Id.* at 18:10-25.) Defense Counsel repeated her question after the break, and Plaintiff's Counsel once again instructed his client not to answer and requested a break while the question was pending. (*Id.*, at 19:2-25.)

After the break, Defense Counsel introduced Plaintiff's form interrogatory responses as Exhibit 2. (*Id.*, at 20:2-5.) Directing Plaintiff to her responses to Form Interrogatories 2.9 and 2.10, Defense Counsel asked: "*So it says that you can speak, read and write English with ease, correct?*" (*Id.*, at 20:2-21.) Plaintiff responded, "That is correct." (*Id.*, 21:4.) Defense counsel next asked, "*You said that you could speak English with ease and you can read and write English with ease under penalty of perjury, correct?*" (*Id.* at 21:6-8.) Plaintiff's Counsel instructed his client not to answer. (*Id.*, at 21:14-15.) Defense Counsel then asked if Plaintiff hired translator to review her discovery responses. (*Id.* at 21:23-24.) Plaintiff's counsel again objected, characterized the questioning as harassing, and threatened to suspend the deposition. (*Id.*, at 21:25 – 22:4.) Plaintiff refused to answer the question. (*Id.*, at 22:8-9.) Defense Counsel then asked: "On February 12th, 2025, you gave a one hour and minute interview to police, correct?" (*Id.*, at 22:10-11.) Plaintiff's Counsel immediately suspended the deposition over Defense Counsel's objections. (*Id.*, at pp. 22-23.)

LEGAL ANALYSIS

The civil discovery framework broadly authorizes the discovery of "any matter, not privileged, . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.) "For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement." (*Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546, internal quotations and emphasis omitted.) Moreover, "irrelevance alone is an insufficient ground to justify preventing a witness from answering a question posed at a deposition." (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1014, *disapproved of on other grounds by Maniago v. Desert Cardiology Consultants' Medical Group, Inc.* (2026) 20 Cal.5th 91.)

In *Stewart*, the Court of Appeal explained that under Code Civ. Proc. § 2025 contemplates that deponents not be prevented from answering a question unless it pertains to a privileged matter or "the examination is being conducted in bad faith or in a manner that unreasonably annoys, embarrasses, or oppresses that deponent or party." (*Stewart, supra*, 87 Cal.App.4th at 1014-15.)

Separately, Evid. Code § 752(a) provides:

When a witness is incapable of understanding the English language or is incapable of expressing himself or herself in the English language so as to be understood directly by counsel, court, and jury, an interpreter whom the witness can understand and who can understand the witness shall be sworn to interpret for the witness.

Plaintiff's motion for a protective order arises from questioning by Defense counsel at Plaintiff's deposition regarding Plaintiff's English language proficiency, prompted in part by Plaintiff's stated need for a Turkish translator at her deposition.

Plaintiff requests that this Court issue a protective order:

- (a) Prohibiting Defendants and their counsel from questioning Plaintiff at any resumed deposition, or at trial, concerning her English-language abilities, her use of a Turkish interpreter, or the legitimacy or necessity of her interpreter, including but not limited to questions about whether Plaintiff is “incapable of expressing herself in the English language,” questions about her responses to form interrogatories regarding her language abilities, questions about whether she hired a translator to review discovery responses, and questions about prior interviews conducted in English;
- (b) Ordering that any resumed deposition of Plaintiff shall proceed with the assistance of a certified Turkish interpreter, without objection or interference by Defendants or their counsel;
- (c) Ordering that Defendants and their counsel refrain from any further conduct at Plaintiff’s deposition that is designed to annoy, embarrass, or oppress Plaintiff within the meaning of Code of Civil Procedure section 2025.420; and
- (d) Granting such other and further relief as the Court deems just and proper, including the reservation of Plaintiff’s right to seek monetary sanctions under Code of Civil Procedure section 2025.420, subdivision (h).

1. Plaintiff’s Counsel Had No Valid Basis to Instruct Plaintiff Not to Answer Relevant, Non-harassing Questions Concerning Her English Proficiency

Here, Plaintiff argues that her counsel’s instruction not to answer questions about her English language abilities were warranted because defense counsel was conducting the examination in a manner that was unreasonably annoying, embarrassing, or oppressive to Plaintiff. (MPA, at 11:22-28, 12:19-27.)

Plaintiff alleges that Defense counsel’s questioning was designed to annoy, embarrass, and oppress Plaintiff. (*Id.*, at 8:24 – 10:8.) In support of that contention, Plaintiff notes that:

- Defense counsel previously stated via email her intent to examine Plaintiff on her English language abilities;
- The questioning served no legitimate discovery purpose;
- Defense counsel persisted in this line of questioning despite repeated objections and warnings; and
- Defense counsel mischaracterized Plaintiff’s interrogatory responses.

(*Ibid.*) Plaintiff further explains Plaintiff, a Turkish immigrant who has lived in the United States for six years, “was subjected to repeated questioning designed to suggest that her need for a Turkish interpreter was illegitimate and that she was being dishonest about her language abilities.” (*Id.*, at 11:22-25.) Plaintiff contends that “[t]he intimidating and humiliating nature of this conduct is self-evident.” (*Id.*, at 11:27-28.)

The Court disagrees. The harassing nature of the Defense counsel's conduct is not evident in deposition transcript, nor in light of any context provided by Plaintiff.

After a line of questioning about Plaintiff's demand letter, Defense counsel asked Plaintiff: "Do you believe that you are incapable of expressing yourself in the English language?" (Montiel Decl., Ex. A, 18:8-9.) Plaintiff's counsel objected on the basis that Plaintiff's right to testify through an interpreter is not a proper subject for examination and stated "I instruct my client not to answer any further questions on this topic as they're harassing." (*Id.*, at 18:10-19.)

It is unclear how Plaintiff's counsel finds this question harassing. In fact, the question directly tracks the statutory language regarding interpreters for witnesses:

When a witness is incapable of understanding the English language or is ***incapable of expressing himself or herself in the English language*** so as to be understood directly by counsel, court, and jury, an interpreter whom the witness can understand and who can understand the witness shall be sworn to interpret for the witness.

(Cal. Evid. Code, § 752, subd. (a) [emphasis added].) Regardless, it was actually unreasonable for Plaintiff's counsel to conclude that the line of questioning was harassing after one lone question. The fact that parties disagreed via email prior to the deposition on the propriety of questions related to English proficiency does not make the line of questioning harassing. Defense counsel's emails state an intent to examine Plaintiff on this issue but do not reflect an intent to harass Plaintiff, nor is the tone of Defense counsel's emails harassing or otherwise unreasonable. (See Buzzard Decl., Ex. A.)

After the parties went off record for one minute, Defense counsel repeated the question and Plaintiff's counsel again instructed Plaintiff not to answer. (Montiel Decl., Ex. A, 19:2-15.) After a short recess, Defense counsel then introduced Plaintiff's responses to form interrogatories as Exhibit 2 and asked Plaintiff if it was correct that, in her responses to Nos. 2.9 and 2.10, Plaintiff stated that she "can speak, read and write English with ease." (*Id.*, at 20:2-21.) Plaintiff answered, "that is correct." (*Id.*, at 21:4.) Defense counsel then asked if Plaintiff made those interrogatory responses under penalty of perjury. (*Id.*, 21:6-8.) Plaintiff's counsel objected, stating, "These questions are simply designed to harass the plaintiff and if another question is asked on this line of questioning, I will suspend, I'll direct my client not to answer." (*Id.*, 21:12-15.)

Interrogatories are admissible for impeachment purposes. When a deponent's previous discovery responses appear inconsistent with their current conduct or testimony, the discrepancy serves as a proper basis for questioning. Further, the issue Plaintiff's English proficiency is relevant not only to Evidence Code § 752(a), but also as to her interrogatory responses – both on the topic and generally, as Plaintiff's responses were apparently not made with the assistance of an interpreter. Defendants' questioning was not harassing in substance or tone. It was therefore improper for Plaintiff's counsel to instruct Plaintiff not to respond.

Defense counsel next asked if Plaintiff hired a translator to review her discovery responses, and Plaintiff's counsel repeated the same objection, instructing Plaintiff not to answer. (*Id.*, at 21:23 – 22:9.) Defense counsel then asked: "On February 12th, 2025, you gave a one hour and 26 minute interview to police, correct? (22:10-11.) Plaintiff's counsel responded: "Objection, harassing, we'll suspend." (22:13-14.)

Given Plaintiff's stated need for a translator at her deposition, it was relevant for Defendant to ask if Plaintiff reviewed her previous discovery responses with a translator. The question is not harassing and Plaintiff's counsel had no legitimate basis to instruct Plaintiff to not respond. Separately, it was entirely unreasonable for Plaintiff's counsel to suspend the deposition when Defense counsel brought up Plaintiff's interview with police. The line of questioning to that point was not harassing and, further, Plaintiff's counsel did not even know where the line of questioning was on the police interview was going. Plaintiff's conduct during a police interview for the subject incident is clearly relevant, discoverable, and a proper area for inquiry.

Accordingly, the Court finds that Plaintiff's counsel had no basis to instruct Plaintiff to not answer questions asked by Defendant regarding her English language proficiency at her deposition and that Plaintiff's motion is without merit.

Plaintiff's motion for a protective order is DENIED in its entirety.

The Court further ORDERS that parties shall meet and confer to set a date to reopen Plaintiff's deposition, to be held within 21 days of notice of entry of this order, unless a later date is mutually agreed upon. Given Plaintiff's request and/or need for an interpreter, Defendant shall be permitted to depose Plaintiff for a second day, if needed, not to exceed 14 hours of total deposition time. Prior to reopening the deposition, the parties shall determine a mutually agreeable date for when the deposition will be continued to a second day, if needed. The Court expects that any unforeseen issues with scheduling will be resolved amicably.

2. Sanctions Are Warranted

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.420, subd. (h).)

Defendant requests sanctions of \$12,740.00 in attorney's fees incurred in preparing this motion, which includes \$7,320 in associate time (12 hours at \$600 per hour), \$3,300.00 in senior associate time (3.7 hours at \$900 per hour), and \$2,090.00 in partner time (1.9 hours at \$1,100 per hour). (Montiel Decl., ¶ 23, Ex. H, Timeslip Reporting.)

Defendant further requests sanctions in the amount of the following costs: \$620.00 invoiced for the videographer for the suspended deposition; \$1,064.48 in Court Reporter fees and for the suspended deposition transcript; and \$2,150.00 for reopening the suspended deposition.

The Court finds Defendant's requests for attorney's fees and costs related to the suspended deposition to be reasonable and supported by Defense counsel's declaration. However, the Court declines to include costs for reopening the deposition, as those costs have not yet been incurred and, more importantly, exceed reimbursement for the suspended deposition.

Plaintiff argues that sanctions are not warranted because the motion was substantially justified. Plaintiff's argument effectively rests on the same arguments as the motion: that the deposition transcript shows demeaning questioning and that pre-deposition correspondence likewise indicated an intent to harass. The Court rejects those arguments and finds that Plaintiff had no substantial justification for bringing this motion.

Accordingly, Defendant's request for sanctions is GRANTED in the amount of \$14,424.48, against Plaintiff Miray Yarasir and her counsel of record, Ayala, Morgan & Buzzard Attorneys At Law, jointly and severally, to be paid within ten (10) days of notice of entry of this order.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7

26-CIV-05127 ANCHORCRAFT CO. VS. WAVE2WAVE SOLUTION CORPORATION, ET
AL

ANCHORCRAFT CO.
WAVE2WAVE SOLUTION CORPORATION

J. CRAIG CRAWFORD
AARON M. LEVINE

Plaintiff's Application for Right to Attach Order and Order for Issuance of Writ of Attachment

TENTATIVE RULING:

Plaintiff Anchorcraft Co.'s Application for Right to Attach Order and Order for Issuance of Writ of Attachment is DENIED, as follows:

Evidentiary Objections

Defendants object to portions of the Crandon Decl. and Supp. Crandon Decl. in support of Plaintiff's Application. Defendants' objections No. 39 and 43 are SUSTAINED based on hearsay pursuant to Evidence Code section 1200. Defendants' remaining evidentiary objections are OVERRULED.

Writ of Attachment

Before the court can reach the issue of whether a writ of attachment should issue, a plaintiff must establish that the underlying claim is one upon which attachment may issue. Under the applicable statute, attachment is available only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount is a fixed or readily ascertainable amount not less than \$500, exclusive of costs, interest, and attorney's fees. (Code Civ. Proc. section 483.010 subd. (a).)

Once the plaintiff has established that a claim qualifies for attachment, the court must find all four of the following elements before issuing a right to attach order: (1) the claim upon which the attachment is based is one upon which an attachment may be issued; (2) the plaintiff has established the probable validity of the claim upon which the attachment is based; (3) the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; and (4) the amount to be secured by the attachment is greater than zero. (Code Civ. Proc. section 484.090 subd. (a).) These four requirements are mandatory prerequisites to issuance of a writ. (*California Retail Portfolio Fund GMBH & Co. KG v. Hopkins Real Est. Grp.* (2011) 193 Cal. App. 4th 849, 122 Cal. Rptr. 3d 614; *Park v. NMSI, Inc.* (2023) 96 Cal. App. 5th 346, 314 Cal. Rptr. 3d 306.)
